

FEDERAL MARITIME COMMISSION

DOCKET NO. 14-16

BALTIC AUTO SHIPPING, INC.

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV and
EMPIRE UNITED LINES CO., INC.**

**RESPONDENTS' OPPOSITION TO COMPLAINANT'S
MOTION FOR CONFIDENTIAL TREATMENT**

Respondents respectfully submit this opposition to Complainant's motion for confidential treatment of Complainant's Reply to Respondents' Petition Regarding Attorney Fees.

Complainant's Motion Should be Denied for Failure to Confer

At the outset it should be noted that once again Complainant's counsel (Mr. Nussbaum) made no effort to confer before filing the non-dispositive motion for confidential treatment, and thus, the motion should be rejected simply on the basis of Mr. Nussbaum's repeated violation of Rule 71(a).

This is becoming a common practice on the part of Mr. Nussbaum. When he attempted to file his initial motion requesting an extension of time on August 1, 2017, Mr. Nussbaum openly admitted failing to confer, and as a result the filing was rejected and the Secretary of the Commission expressly instructed him to confer before re-filing. **[Doc. No. 99 at p. 10]**. On August 15, 2017, when he filed his second motion for an extension of time Mr. Nussbaum misrepresented the nature of the extension sought, and more importantly, he failed to confer regarding his request for a stay. **[Doc. No. 102]**. Mr. Nussbaum similarly failed to confer regarding his request for an evidentiary hearing filed on August 22, 2017 **[Doc. No. 105]**, and as

noted above, he also failed to confer regarding the motion for confidential treatment filed on the same day **[Doc. No. 104]**.

Respondents respectfully submit that Mr. Nussbaum's brazen and repeated failure to comply with Rule 71(a) (**four such violations in this month alone**) can only be construed as being an intentional flouting of the Commission's Rules at this point.

Mr. Nussbaum has exhibited the same lack of respect for the Commission's Rules in other matters before the Commission. For example, see *Ovchinnikov et al. v. Hitrinov et al.*, FMC Docket No. 15-11, at Doc. No. 128, in which counsel for the Respondents in that matter detailed, at length, Mr. Nussbaum's numerous violations of the FMC Rules and the Model Rules of Professional Conduct, and sought suspension of Mr. Nussbaum's privilege to practice before the Commission. Respondents respectfully submit that if the Commission does not stop Mr. Nussbaum from engaging in such practices, he will continue the same pattern of non-compliance in this and other matters before the Commission.

There Was No Confidentiality Agreement in the DNJ Case

Substantively, the basis for Respondents' opposition is simple: there was never any final agreement by the parties to the DNJ case for any confidential treatment of the settlement of that case, nor was there ever any order of confidentiality entered in that case.

As the transcript of the April 21, 2016 conference in the DNJ case demonstrates, the parties discussed having the Court issue a confidentiality order with the terms of such confidentiality to be decided later:

[REDACTED]

(Emphasis added).¹

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However, as a review of the docket in the DNJ case will readily show, no such confidentiality order was ever agreed to or issued by the Court in the DNJ case. See docket sheet in the DNJ case attached as **Exhibit A**.

This is further demonstrated by the fact that Mr. Nussbaum openly and **publicly** referred to the settlement **including the settlement amount his clients were required to pay**, in a letter filed with the Court in the DNJ case. See June 15, 2016 letter from Mr. Nussbaum attached as **Exhibit B**: *“As of the time of this writing, defendants have deposited in Judge Cavanaugh’s escrow account, the sum of \$32,500.00 with the second installment and remaining balance to be deposited via wire transfer on June 20, 2016.”* Mr. Nussbaum knows this because he himself filed a copy of this letter in the public version of his Certification. **[Doc. No. 106 at p. 25]**.

Furthermore, Mr. Nussbaum’s representation that confidential treatment is required due to “obligations of the parties herein arising out of said confidentiality clause” in the unsigned settlement agreement he again seeks to rely upon, is false, since as the Commission has already ruled, *“the Settlement Agreement was never signed by Respondents and at this point, the parties have not jointly decided that settlement is in their best interest.”* **[Doc. No. 94 at p. 9]**.

Complainant Has Failed to Show Good Cause For Confidential Treatment

Moreover, a perusal of Complainant’s Reply to Respondents’ Petition Regarding Attorney Fees reveals that the extent of the redacted material goes well beyond any legitimate claim of confidentiality. Nearly half the pages in Complainant’s Reply to Respondents’ Petition Regarding Attorney Fees contain redacted material, and the redactions include Complainant’s legal arguments themselves, the content of open correspondence between the parties to the DNJ case and Judge Cavanaugh, and even, bafflingly, the fact that Complainant withdrew its Exceptions in this proceeding, as well as the content of status reports provided to the

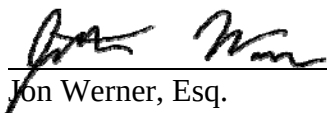
Commission, and the fact that Respondents are seeking recovery of attorney fees in excess of \$90,000. **[Doc. No. 105 at pp. 10-11, 15-16, 36-38]**. The facts that Complainant withdrew its Exceptions in this proceeding, and that Respondents are seeking recovery of attorney fees in excess of \$90,000 are matters of public record and Complainant cannot now seek confidential treatment of same.

Respondents respectfully submit that the fact that confidential treatment is sought with respect to any reference to Complainant having withdrawn its Exceptions or the extent of liability for attorney fees which Complainant are now facing, reveals that Mr. Nussbaum's true motive in seeking confidential treatment is to protect his own reputation, by hiding from the public (and potential future clients) the extent to which his clients have suffered from his poor legal representation and bad faith tactics in this matter and in the DNJ case; to wit: filing a meritless action based on claims that had been clearly released in a signed 2011 settlement agreement between Complainant and Respondents, and continuing to litigate in bad faith even after being repeatedly warned that the claims were meritless and persisting in such worthless claims could result in Respondents being awarded attorney fees.

Therefore, Respondents respectfully submit that Complainant has not demonstrated the "good cause" required under Rule 208 and 46 C.F.R. § 502.5(b) for confidential treatment to be accorded to Complainant's Reply to Respondents' Petition Regarding Attorney Fees. Complainant's motion should be denied.

Dated this 29th day of August 2017.

LYONS & FLOOD, LLP

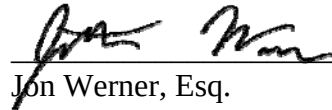
By: 
Jon Werner, Esq.
One Exchange Plaza
55 Broadway, Suite 1501
New York, NY 10006
(212) 594-2400
(212) 594-4589 (fax)
jwerner@lyons-flood.com
Attorney for Respondents

CERTIFICATE OF SERVICE

I hereby certify that I have this day served RESPONDENTS' OPPOSITION TO COMPLAINANT'S MOTION FOR CONFIDENTIAL TREATMENT upon all parties of record by first class mail and email at the addresses below, and that the original and five copies are being filed with the Secretary of the Federal Maritime Commission:

Marcus A. Nussbaum, Esq.
Attorneys for Complainant
P.O. Box 245599
Brooklyn, NY 11224
marcus.nussbaum@gmail.com

Dated this 29th day of August 2017.



Jon Werner, Esq.
Lyons & Flood, LLP
One Exchange Plaza
55 Broadway, Suite 1501
New York, NY 10006
Attorney for Respondents

EXHIBIT A

CLOSED,RULE16,SCHEDO

**U.S. District Court
District of New Jersey [LIVE] (Newark)
CIVIL DOCKET FOR CASE #: 2:15-cv-00355-CCC-MF**

EMPIRE UNITED LINES CO., INC. et al v. BALTIC AUTO
SHIPPING, INC.

Assigned to: Judge Claire C. Cecchi

Referred to: Magistrate Judge Mark Falk

Cause: 28:1332 Diversity-Breach of Contract

Date Filed: 01/20/2015

Date Terminated: 06/15/2016

Jury Demand: Defendant

Nature of Suit: 190 Contract: Other

Jurisdiction: Diversity

Special Master

DENNIS M. CAVANAUGH

represented by **DENNIS MICHAEL CAVANAUGH**
MCELROY, DEUTSCH, MULVANEY &
CARPENTER LLP
1300 MOUNT KEMBLE AVENUE
MORRISTOWN, NJ 07962-2075
973-993-8100
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Plaintiff

EMPIRE UNITED LINES CO., INC.

represented by **JON WERNER**
LYONS & FLOOD LLP
One Exchange Plaza
55 Broadway, Suite 1501
NEW YORK, NY 10006
212-594-2400
Fax: 212-594-4589
Email: jwerner@lyons-flood.com
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Plaintiff

MICHAEL HITRINOV

represented by **JON WERNER**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

V.

Defendant

BALTIC AUTO SHIPPING, INC.

represented by **MARCUS AURELIUS NUSSBAUM**
P.O. BOX 7042

NEW YORK, NY 10116
888-426-4370
Email: marcus.nussbaum@gmail.com
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Defendant

ANDREJUS PRESNIAKOVAS

represented by **MARCUS AURELIUS NUSSBAUM**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Counter Claimant

ANDREJUS PRESNIAKOVAS

represented by **MARCUS AURELIUS NUSSBAUM**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Counter Claimant

BALTIC AUTO SHIPPING, INC.

represented by **MARCUS AURELIUS NUSSBAUM**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

V.

Counter Defendant

EMPIRE UNITED LINES CO., INC.

represented by **JON WERNER**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Counter Defendant

MICHAEL HITRINOV

represented by **JON WERNER**
(See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
01/20/2015	<u>1</u>	COMPLAINT against BALTIC AUTO SHIPPING, INC. (Filing and Admin fee \$ 400 receipt number 0312-6158213), filed by EMPIRE UNITED LINES CO., INC., MICHAEL HITRINOV. (Attachments: # <u>1</u> Civil Cover Sheet, # <u>2</u> Exhibit A, # <u>3</u> Exhibit B, # <u>4</u> Exhibit C, # <u>5</u> Exhibit D)(anr) (Entered: 01/20/2015)

- 01/20/2015 [2](#) Corporate Disclosure Statement by EMPIRE UNITED LINES CO., INC. identifying NONE as Corporate Parent. (anr) (Entered: 01/20/2015)
- 01/20/2015 [3](#) SUMMONS ISSUED as to BALTIC AUTO SHIPPING, INC. Attached is the official court Summons, please fill out Defendant and Plaintiffs attorney information and serve. Issued By *ANGELICA RICHARDSON* (anr) (Entered: 01/20/2015)
- 01/20/2015 [4](#) MOTION for Order to Show Cause by MICHAEL HITRINOV. (WERNER, JON) (Entered: 01/20/2015)
- 01/20/2015 [5](#) MOTION for Order to Show Cause by MICHAEL HITRINOV. (Attachments: # [1](#) Certification Certification of Michael Hitrinov, # [2](#) Exhibit Exhibit A to Hitrinov Certification, # [3](#) Exhibit Exhibit B to Hitrinov Certification, # [4](#) Exhibit Exhibit C to Hitrinov Certification, # [5](#) Exhibit Exhibit D to Hitrinov Certification, # [6](#) Exhibit Exhibit E to Hitrinov Certification, # [7](#) Exhibit Exhibit F to Hitrinov Certification, # [8](#) Exhibit Exhibit G to Hitrinov Certification, # [9](#) Exhibit Exhibit H to Hitrinov Certification, # [10](#) Exhibit Exhibit I to Hitrinov Certification)(WERNER, JON) (Entered: 01/20/2015)
- 01/22/2015 [6](#) DECLARATION and Memorandum of Law in Opposition to Plaintiffs' Application for a TRO and Preliminary Injunction by BALTIC AUTO SHIPPING, INC.. (Attachments: # [1](#) Memorandum of Law)(NUSSBAUM, MARCUS) (Entered: 01/22/2015)
- 01/22/2015 [7](#) BRIEF in further support of plaintiffs' application for a TRO and preliminary injunction (WERNER, JON) (Entered: 01/22/2015)
- 01/23/2015 [8](#) OPINION AND ORDER ; Plaintiff's request for temporary restraints [5](#) is DENIED. The Order to Show Cause is DENIED. Signed by Judge Claire C. Cecchi on 1/23/2015. (anr) (Entered: 01/23/2015)
- 02/03/2015 [9](#) AMENDED COMPLAINT against BALTIC AUTO SHIPPING, INC., ANDREJUS PRESNIAKOVAS, filed by EMPIRE UNITED LINES CO., INC., MICHAEL HITRINOV. (Attachments: # [1](#) Exhibit A - 2011 Complaint, # [2](#) Exhibit B - Settlement Agreement, # [3](#) Exhibit C - 12/7/11 Order, # [4](#) Exhibit D - FMC Complaint, # [5](#) Exhibit E - FMC Amended Complaint)(WERNER, JON) (Entered: 02/03/2015)
- 02/05/2015 [10](#) Letter from JON WERNER addressed to Judge Cecchi dated 2/3/15. (js) (Entered: 02/06/2015)
- 02/05/2015 [11](#) LETTER ORDER, the parties shall meet and confer no later than 2/10/15 to address the matters herein. Signed by Judge Claire C. Cecchi on 2/5/15. (js) (Entered: 02/06/2015)
- 02/11/2015 [12](#) NOTICE of Appearance by MARCUS AURELIUS NUSSBAUM on behalf of BALTIC AUTO SHIPPING, INC., ANDREJUS PRESNIAKOVAS (NUSSBAUM, MARCUS) (Entered: 02/11/2015)
- 02/13/2015 [13](#) Letter from JON WERNER, counsel for Pltf. reporting that counsel for the parties have met & conferred via email & telephone, not in person, purs. to Court's 2/5/15 memo (DD,) (Entered: 02/13/2015)
- 02/19/2015 [14](#) SUMMONS Returned Executed by EMPIRE UNITED LINES CO., INC., MICHAEL HITRINOV. BALTIC AUTO SHIPPING, INC. served on 2/4/2015, answer due

2/25/2015. (WERNER, JON) (Entered: 02/19/2015)

02/19/2015 [15](#) SUMMONS Returned Executed by EMPIRE UNITED LINES CO., INC., MICHAEL HITRINOV. ANDREJUS PRESNIAKOVAS served on 2/4/2015, answer due 2/25/2015. (WERNER, JON) (Entered: 02/19/2015)

02/25/2015 [16](#) ANSWER to Amended Complaint , COUNTERCLAIM against EMPIRE UNITED LINES CO., INC., MICHAEL HITRINOV by ANDREJUS PRESNIAKOVAS, BALTIC AUTO SHIPPING, INC..(NUSSBAUM, MARCUS) (Entered: 02/25/2015)

02/26/2015 [17](#) Letter. (Attachments: # [1](#) Exhibit Emails between counsel)(WERNER, JON) (Entered: 02/26/2015)

02/26/2015 [18](#) LETTER ORDER - Scheduling Conference set for 3/13/2015 at 10:30 AM in Newark - Courtroom 9 before Magistrate Judge Mark Falk. Signed by Magistrate Judge Mark Falk on 2/26/15. (LM,) (Entered: 02/26/2015)

03/13/2015 Minute Entry for proceedings held before Magistrate Judge Mark Falk: Scheduling Conference held on 3/13/2015. (LM,) (Entered: 04/07/2015)

03/16/2015 [19](#) ANSWER to Counterclaim by EMPIRE UNITED LINES CO., INC., MICHAEL HITRINOV.(WERNER, JON) (Entered: 03/16/2015)

03/18/2015 [20](#) ORDER: Status and Settlement Conference set for 5/15/2015 @10:00 AM before Magistrate Judge Mark Falk. Any motion to add new parties, whether by amended or third-party complaint, must be filed on or before 6/1/2015. Discovery due by 10/1/2015. Signed by Magistrate Judge Mark Falk on 3/18/15. (js) (Entered: 03/19/2015)

04/08/2015 [21](#) MOTION for Sanctions by EMPIRE UNITED LINES CO., INC., MICHAEL HITRINOV. (WERNER, JON) (Entered: 04/08/2015)

04/08/2015 [22](#) CERTIFICATION in Support filed by EMPIRE UNITED LINES CO., INC., MICHAEL HITRINOV re [21](#) MOTION for Sanctions (Attachments: # [1](#) Exhibit A - 2011 Complaint, # [2](#) Exhibit B - Baltic's 11/25/11 email, # [3](#) Exhibit C - EUL's 11/25/11 email, # [4](#) Exhibit D - 11/27/11 emails, # [5](#) Exhibit E - 11/28/11 email, # [6](#) Exhibit F - Settlement Agreement and Mutual Release, # [7](#) Exhibit G - 12/7/11 Order, # [8](#) Exhibit H - FMC Complaint, # [9](#) Exhibit I - 10/29/14 Order, # [10](#) Exhibit J - 12/10/14 email, # [11](#) Exhibit K - 12/14/14 email, # [12](#) Exhibit L - 1/5/15 letter, # [13](#) Exhibit M - Amended FMC Complaint, # [14](#) Exhibit N - 1/16/15 order, # [15](#) Exhibit O - 1/22/15 brief in opposition, # [16](#) Exhibit P - 1/23/15 opinion and order, # [17](#) Exhibit Q - Answer and Counterclaims)(WERNER, JON) (Entered: 04/08/2015)

04/08/2015 [23](#) BRIEF in Support filed by EMPIRE UNITED LINES CO., INC., MICHAEL HITRINOV re [21](#) MOTION for Sanctions (WERNER, JON) (Entered: 04/08/2015)

04/09/2015 Set/Reset Deadlines as to [21](#) MOTION for Sanctions . Motion set for 5/4/2015 before Judge Claire C. Cecchi. The motion will be decided on the papers. No appearances required unless notified by the court. (anr) (Entered: 04/09/2015)

04/14/2015 Minute Entry for proceedings held before Magistrate Judge Mark Falk: Telephone Conference held on 4/14/2015. (LM,) (Entered: 04/14/2015)

- 04/21/2015 [24](#) MEMORANDUM in Opposition filed by BALTIC AUTO SHIPPING, INC., ANDREJUS PRESNIAKOVAS re [21](#) MOTION for Sanctions (Attachments: # [1](#) Affidavit Affirmation in Opposition, # [2](#) Exhibit Case law admonishing plaintiffs' law firm, # [3](#) Exhibit Case law admonishing plaintiffs' law firm)(NUSSBAUM, MARCUS) (Entered: 04/21/2015)
- 04/27/2015 [25](#) MOTION for Extension of Time to File Response/Reply as to [21](#) MOTION for Sanctions by EMPIRE UNITED LINES CO., INC., MICHAEL HITRINOV. (WERNER, JON) (Entered: 04/27/2015)
- 04/29/2015 [26](#) ORDER granting pltf's request to adjourn the motion for sanctions to 6/1/2015. Signed by Judge Claire C. Cecchi on 4/29/2015. (nr,) (Entered: 05/01/2015)
- 05/01/2015 Set/Reset Deadlines as to [21](#) MOTION for Sanctions . Motion set for 6/1/2015 before Judge Claire C. Cecchi. The motion will be decided on the papers. No appearances required unless notified by the court. (nr,) (Entered: 05/01/2015)
- 05/05/2015 [27](#) MOTION to Adjourn the Settlement Conference Currently Scheduled for May 15, 2015 by BALTIC AUTO SHIPPING, INC., ANDREJUS PRESNIAKOVAS. (NUSSBAUM, MARCUS) (Entered: 05/05/2015)
- 05/06/2015 28 TEXT ORDER: There shall be a telephone conference before the Undersigned on May 8, 2015 at 10:00 a.m. Counsel for Defendant Baltic Auto Shipping is directed to arrange for and initiate the conference call. Please mark your calendars accordingly. Ordered by Magistrate Judge Mark Falk on 5/6/15. (LM,) (Entered: 05/06/2015)
- 05/07/2015 29 TEXT ORDER: Please be advised that the telephone conference before the Undersigned on 5/8/2015 is hereby rescheduled to May 12, 2015 at 11:15 a.m. Counsel for Defendant Baltic Auto Shipping is directed to arrange for and initiate the conference call. Ordered by Magistrate Judge Mark Falk on 5/7/15. (LM,) (Entered: 05/07/2015)
- 05/07/2015 30 TEXT ORDER: Please be advised that the telephone conference before the Undersigned on 5/12/2015 is hereby rescheduled to May 8, 2015 at 11:30 a.m. Counsel for Defendant Baltic Auto Shipping is directed to arrange for and initiate the conference call. Ordered by Magistrate Judge Mark Falk on 5/7/15. (LM,) (Entered: 05/07/2015)
- 05/15/2015 [31](#) ORDER TO SHOW CAUSE Show Cause Hearing regarding transfer set for 5/26/2015 at 10:00 AM in Newark - Courtroom 9 before Magistrate Judge Mark Falk.. Signed by Magistrate Judge Mark Falk on 5/15/15. (LM,) (Entered: 05/15/2015)
- 05/15/2015 Minute Entry for proceedings held before Magistrate Judge Mark Falk: Settlement Conference held on 5/15/2015. (LM,) (Entered: 05/19/2015)
- 05/16/2015 [32](#) Proposed Pretrial Order by EMPIRE UNITED LINES CO., INC., MICHAEL HITRINOV. (WERNER, JON) (Entered: 05/16/2015)
- 05/18/2015 [33](#) MOTION for Discovery *to address plaintiffs' proposed discovery order* by BALTIC AUTO SHIPPING, INC., ANDREJUS PRESNIAKOVAS. (Attachments: # [1](#) Proposed Counter-Order)(NUSSBAUM, MARCUS) (Entered: 05/18/2015)
- 05/18/2015 [34](#) AFFIDAVIT of Andrejus Presniakovas re [33](#) MOTION for Discovery *to address plaintiffs' proposed discovery order* by BALTIC AUTO SHIPPING, INC., ANDREJUS

PRESNIAKOVAS. (NUSSBAUM, MARCUS) (Entered: 05/18/2015)

05/18/2015 [35](#) Letter from Jon Werner re [34](#) Affidavit. (WERNER, JON) (Entered: 05/18/2015)

05/19/2015 [36](#) Letter from Marcus A. Nussbaum re [34](#) Affidavit. (NUSSBAUM, MARCUS) (Entered: 05/19/2015)

05/22/2015 [37](#) RESPONSE TO ORDER TO SHOW CAUSE by BALTIC AUTO SHIPPING, INC., ANDREJUS PRESNIAKOVAS. (Attachments: # [1](#) Exhibit Copy of the 2011 D.N.J. Complaint)(NUSSBAUM, MARCUS) (Entered: 05/22/2015)

05/22/2015 [38](#) RESPONSE TO ORDER TO SHOW CAUSE by EMPIRE UNITED LINES CO., INC., MICHAEL HITRINOV. (Attachments: # [1](#) Exhibit May 22, 2015 Minute Entry) (WERNER, JON) (Entered: 05/22/2015)

05/22/2015 Minute Entry for proceedings held before Magistrate Judge Mark Falk: Telephone Conference held on 5/22/2015. (LM,) (Entered: 06/02/2015)

05/29/2015 [39](#) Letter from Jon Werner. (Attachments: # [1](#) Exhibit - Answer, # [2](#) Exhibit - March 15, 2015 Letter)(WERNER, JON) (Entered: 05/29/2015)

05/29/2015 [40](#) Letter from Marcus A. Nussbaum re [39](#) Letter. (NUSSBAUM, MARCUS) (Entered: 05/29/2015)

05/29/2015 Minute Entry for proceedings held before Magistrate Judge Mark Falk: Show Cause Hearing held on 5/29/2015. Decision reserved. (CD #ECR.) (LM,) (Entered: 06/04/2015)

06/10/2015 [41](#) Letter from Jon Werner. (Attachments: # [1](#) Exhibit - Correspondence between counsel) (WERNER, JON) (Entered: 06/10/2015)

06/10/2015 [42](#) Letter from Marcus A. Nussbaum re [41](#) Letter. (NUSSBAUM, MARCUS) (Entered: 06/10/2015)

06/12/2015 [43](#) Letter from Jon Werner re [42](#) Letter, [41](#) Letter. (Attachments: # [1](#) Exhibit - May 5, 2015 letter)(WERNER, JON) (Entered: 06/12/2015)

06/17/2015 [44](#) Letter from Marcus A. Nussbaum re [43](#) Letter. (NUSSBAUM, MARCUS) (Entered: 06/17/2015)

06/18/2015 45 TEXT ORDER: Please be advised that there shall be a telephone conference before the Undersigned on June 19, 2015 at 10:30 a.m. Plaintiff's is directed to arrange for and initiate the conference call. Kindly mark your calendars accordingly. Ordered by Magistrate Judge Mark Falk on 6/18/15. (LM,) (Entered: 06/18/2015)

06/19/2015 46 TEXT ORDER: Telephone Conference set for 6/19/2015 is hereby rescheduled to June 25, 2015 at 10:45 a.m. before Magistrate Judge Mark Falk. Plaintiff's counsel is directed to arrange for and initiate the conference call. Please mark your calendars accordingly. Ordered by Magistrate Judge Mark Falk on 6/19/2015.(LM,) (Entered: 06/19/2015)

06/23/2015 [47](#) Letter from Jon Werner. (WERNER, JON) (Entered: 06/23/2015)

06/24/2015 [48](#) Letter from Marcus A. Nussbaum re [47](#) Letter. (NUSSBAUM, MARCUS) (Entered: 06/24/2015)

06/25/2015 49 TEXT ORDER: For the reasons stated on the record on this date, the Order to Show Cause is withdrawn. A proposed order on discovery issues may be submitted. Ordered by Magistrate Judge Mark Falk on 6/25/15. (LM,) (Entered: 06/25/2015)

06/25/2015 Minute Entry for proceedings held before Magistrate Judge Mark Falk: Telephone Conference held on 6/25/2015. (CD #ECR.) (LM,) (Entered: 06/25/2015)

06/25/2015 [50](#) Transcript of Proceedings held on 5/29/2015, before Magistrate Judge Mark Falk. Transcriber: King Transcription Services (973-237-6080). SHOW CAUSE HEARING. **NOTICE REGARDING REDACTION OF TRANSCRIPTS:** The parties have seven (7) calendar days to file with the Court a Notice of Intent to Request Redaction of this Transcript. Redaction Request due 7/16/2015. Redacted Transcript Deadline set for 7/27/2015. Release of Transcript Restriction set for 9/23/2015. (mfr) (Entered: 06/26/2015)

07/06/2015 Minute Entry for proceedings held before Magistrate Judge Mark Falk: Telephone Conference held on 7/6/2015. (CD #ECR.) (LM,) (Entered: 07/15/2015)

07/14/2015 [51](#) Letter to Counsel of Record dated July 14, 2015. (LM,) (Entered: 07/14/2015)

07/14/2015 [52](#) ORDER scheduling an in-person Status Conference for 7/21/2015 10:00 AM before Magistrate Judge Mark Falk.). Signed by Magistrate Judge Mark Falk on 7/14/15. (sr,) (Entered: 07/15/2015)

07/15/2015 [53](#) Transcript of Proceedings held on July 6, 2015, before Judge MARK FALK. Court Reporter/Transcriber KING TRANSCRIPTION SERVICES/ Sara L. Kern (973-237-6080). TELECONFERENCE. **NOTICE REGARDING REDACTION OF TRANSCRIPTS:** The parties have seven (7) calendar days to file with the Court a Notice of Intent to Request Redaction of this Transcript. Redaction Request due 8/5/2015. Redacted Transcript Deadline set for 8/17/2015. Release of Transcript Restriction set for 10/13/2015. (ek) (Entered: 07/15/2015)

07/21/2015 Minute Entry for proceedings held before Magistrate Judge Mark Falk: Case Management Conference held on 7/21/2015. (CD #ECR.) (LM,) (Entered: 07/21/2015)

08/05/2015 54 TEXT ORDER: The Court is in receipt of two letters and dueling orders regarding the Court's rulings on July 21, 2015. The parties are directed to obtain the transcript of the proceedings that day and then submit double spaced letters, no more than five pages, with citations to the page and line of the transcript supporting their proposed order. The parties are directed in-person before the Undersigned on Wednesday, August 19, 2015, at 2:00 p.m. for a hearing on this issue. So Ordered by Magistrate Judge Mark Falk on 8/5/15. (LM,) (Entered: 08/05/2015)

08/12/2015 [55](#) MOTION for Leave to Appear Pro Hac Vice of Attorney Seth M. Katz by BALTIC AUTO SHIPPING, INC., ANDREJUS PRESNIAKOVAS. (Attachments: # [1](#) Certification Certification of Marcus A. Nussbaum, # [2](#) Certification Certification of Seth M. Katz, # [3](#) Consent Order)(NUSSBAUM, MARCUS) (Entered: 08/12/2015)

08/13/2015 [56](#) Transcript of Proceedings of the case management conference/hearing held on July 21, 2015, before Magistrate Judge Mark Falk. Transcriber: King Transcription Services, Inc. (973-237-6080). **NOTICE REGARDING REDACTION OF TRANSCRIPTS:** The parties have seven (7) calendar days to file with the Court a Notice of Intent to Request Redaction of this Transcript. Redaction Request due 9/3/2015. Redacted Transcript Deadline set for 9/14/2015. Release of Transcript Restriction set for 11/12/2015. (mfr) (Entered: 08/17/2015)

08/17/2015 [57](#) Letter from Jon Werner re 54 Order,, (WERNER, JON) (Entered: 08/17/2015)

08/17/2015 [58](#) CONSENT ORDER granting pro hac vice admission as to SETH M. KATZ, ESQ. Signed by Magistrate Judge Mark Falk on 8/17/15. (cm) (Entered: 08/18/2015)

08/18/2015 [59](#) Letter from Marcus A. Nussbaum re 54 Order,, (NUSSBAUM, MARCUS) (Entered: 08/18/2015)

08/19/2015 [60](#) ORDER - On or before 8/24/2015, one or more corporate representatives designated by defendant Baltic Auto Shipping, Inc. shall appear and testify at the offices of plaintiffs' counsel pursuant to Rule 30(b)(6) notice of deposition served by plaintiffs., etc.. Signed by Magistrate Judge Mark Falk on 8/19/2015. (anr) (Entered: 08/20/2015)

08/19/2015 Minute Entry for proceedings held before Magistrate Judge Mark Falk: Status Conference held on 8/19/2015. (CD #ECR.) (LM,) (Entered: 09/02/2015)

08/21/2015 Minute Entry for proceedings held before Magistrate Judge Mark Falk: Telephone Conference regarding deposition dispute held on 8/21/2015. (LM,) (Entered: 09/03/2015)

08/26/2015 Pro Hac Vice fee of \$ 150.00 received as to Seth M. Katz, Esq., receipt number TRE060930 (km) (Entered: 08/26/2015)

09/02/2015 [61](#) Letter from Marcus A. Nussbaum. (NUSSBAUM, MARCUS) (Entered: 09/02/2015)

09/02/2015 [62](#) ORDER APPOINTING THE HONORABLE DENNIS M. CAVANAUGH AS SPECIAL MASTER, the parties shall advise the Court and the Special Master of any apparent, potential, or actual conflict of interest no later than September 9, 2015. Signed by Magistrate Judge Mark Falk on 9/2/15. (cm) (Entered: 09/03/2015)

09/04/2015 [63](#) Letter from Jon Werner re [62](#) Order,. (WERNER, JON) (Entered: 09/04/2015)

09/14/2015 [64](#) Transcript of Proceedings of Status Conference held on August 19, 2015, before Judge MARK FALK. Court Reporter/Transcriber KING TRANSCRIPTION SERVICES/ Sara L. Kern (973-237-6080). **NOTICE REGARDING REDACTION OF TRANSCRIPTS:** The parties have seven (7) calendar days to file with the Court a Notice of Intent to Request Redaction of this Transcript. Redaction Request due 10/5/2015. Redacted Transcript Deadline set for 10/15/2015. Release of Transcript Restriction set for 12/14/2015. (ek) (Entered: 09/14/2015)

02/23/2016 [65](#) Letter from Marcus A. Nussbaum. (NUSSBAUM, MARCUS) (Entered: 02/23/2016)

02/24/2016 [66](#) Letter from Marcus A. Nussbaum. (NUSSBAUM, MARCUS) (Entered: 02/24/2016)

02/24/2016 [67](#) Letter from Marcus A. Nussbaum. (NUSSBAUM, MARCUS) (Entered: 02/24/2016)

02/25/2016 [68](#) Letter from Jon Werner re [66](#) Letter, [67](#) Letter, [65](#) Letter. (WERNER, JON) (Entered: 02/25/2016)

02/25/2016 [69](#) Letter from Marcus A. Nussbaum. (NUSSBAUM, MARCUS) (Entered: 02/25/2016)

06/08/2016 70 TEXT ORDER: Please be advised that there shall be a telephone conference before the Undersigned on June 10, 2016 at 10:15 a.m. Plaintiff's counsel is directed to arrange for the conference call. So Ordered by Magistrate Judge Mark Falk on 6/8/16. (LM,) (Entered: 06/08/2016)

06/10/2016 Minute Entry for proceedings held before Magistrate Judge Mark Falk: Telephone Conference held on 6/10/2016. (LM,) (Entered: 07/06/2016)

06/15/2016 [71](#) Letter from Marcus A. Nussbaum, Esq.. (NUSSBAUM, MARCUS) (Entered: 06/15/2016)

06/15/2016 [72](#) ORDER DISMISSING CASE without costs and without prejudice to the right, upon good cause shown within 60 days, to reopen the action if the settlement is not consummated. The Clerk shall close the file in this matter. Signed by Judge Claire C. Cecchi on 6/15/2016. (JB,) (Entered: 06/15/2016)

06/15/2016 [73](#) Letter from Jon Werner re [71](#) Letter. (WERNER, JON) (Entered: 06/15/2016)

06/15/2016 [74](#) Letter from Marcus A. Nussbaum, Esq. re [73](#) Letter. (NUSSBAUM, MARCUS) (Entered: 06/15/2016)

06/16/2016 [75](#) Letter from Jon Werner re [74](#) Letter. (WERNER, JON) (Entered: 06/16/2016)

08/16/2016 [76](#) Letter from Marcus A. Nussbaum, Esq. re [72](#) Order Dismissing Case,. (Attachments: # [1](#) Exhibit 60 Day Order)(NUSSBAUM, MARCUS) (Entered: 08/16/2016)

PACER Service Center			
Transaction Receipt			
08/27/2017 21:24:48			
PACER Login:	jonwerner:5321357:5318436	Client Code:	2697005
Description:	Docket Report	Search Criteria:	2:15-cv-00355-CCC-MF Start date: 1/1/1970 End date: 8/28/2017
Billable Pages:	7	Cost:	0.70

EXHIBIT B

MARCUS A. NUSSBAUM, ESQ.

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June 15, 2016

Via ECF Electronic Filing

Magistrate Judge Mark Falk
United States District Court
District of New Jersey
50 Walnut Street
Newark, NJ 07102

Re: *Empire United Lines Co., Inc. et al. v. Baltic Auto Shipping, Inc. et al.*
U.S.D.C. – D.N.J., 15 Civ. 355 (CCC) (MF)

Dear Honorable Magistrate Judge Falk,

I am in receipt of correspondence from counsel for the plaintiffs herein, Mr. Werner in purported response to ours of earlier this date. Kindly allow this letter to reply to same.

As of the time of this writing, defendants have deposited in Judge Cavanaugh's escrow account, the sum of \$32,500.00 with the second installment and remaining balance to be deposited via wire transfer on June 20, 2016.

Earlier this date, we received from the Honorable Judge Claire Cecchi, a 60 Day Order of Dismissal reflecting that this case is now "closed".

As set forth in ours of earlier this date, the undersigned is now in receipt of an "ink original" copy of the Settlement Agreement, signed by our client. All that remains is for plaintiffs to execute same, and for the Court to affix a disposition of the said "ink original".

Counsel for the plaintiffs, Mr. Werner avers that "there is no reasonable or rational basis upon which defendants could object to providing plaintiffs with an ink signed copy of the [S]ettlement [A]greement...". It is therefore, *a fortiori*, that neither is there any "reasonable or rational basis" upon which *plaintiffs* could object to *defendants* retaining the "ink-original" Settlement Agreement.

As to the undersigned having allegedly not objected during the recent telephone conference held hereon to providing the ink signed copy of the Settlement Agreement to plaintiffs, the foregoing does not deter from the fact that both parties can reasonably and equally assert a claim to retain possession of the "ink original" at issue. It is for this reason that the *only* equitable resolution would be for the *Court* to retain the "ink original" of this document within the file pertaining to this matter, and for the parties to be provided with copies thereof. Certainly, there is no "reasonable or rational basis" for plaintiffs to object to this equitable resolution which neither advantages nor disadvantages either party.

As to Mr. Werner having seen fit to air "dirty laundry" before Your Honor, we regret the Court having had to visit such baseless and distasteful opprobrium. That said, and to the extent that Mr. Werner *blatantly lied* to Judge Cavanaugh about his own personal availability to conduct depositions herein, in order to be engaged in a separate matter during which Mr. Werner openly solicited a former client of the undersigned and attempted to induce said former client to bring a legal malpractice suit against the undersigned's law office, it is respectfully submitted that Mr. Werner has manifestly

"unclean hands", and not unlike a man who lives in a glass house should not be one to cast stones.

As to Mr. Werner's obsessive compulsion regarding payment of costs to Judge Cavanaugh, succinctly stated this is none of Mr. Werner's business and never was. That said, following the undersigned having *personally requested* a 'final bill' from Judge Cavanaugh for services provided which was only first received on June 8, 2016, certainly defendants shall and will fully satisfy *any* remaining payment obligations *with Judge Cavanaugh directly*, absent any involvement whatsoever by Mr. Werner.

The undersigned will not dignify by response to Mr. Werner's suggestion of a "phony claim" regarding Mr. Hitrinov's immediate breach of the confidentiality portion of the Settlement Agreement, other than to state that identical to the decision to settle this case in the first instance, a 'business decision' was made in light of mounting litigation costs which had *nothing whatsoever* to do with the unimpeachable validity of said claim.

Concerning Mr. Werner's wild-eyed and reckless accusations as to "...plans the defendants may have to contest the legitimacy of the [S]ettlement [A]greement down the road...", not only is the foregoing a complete fallacy, but is further emblematic of the animosity, abusive, unprofessional and unethical personal conduct and behavior of Mr. Werner with which defendants and their counsel have been burdened since the inception of this lawsuit to the very time of this writing, despite this matter having now been settled and the case closed.

Consequently, and in light of the foregoing defendants respectfully request that the Court direct counsel for the parties, as well as Mr. Hitrinov *personally* to appear in Court on a date certain as soon as may be convenient to Your Honor, for the purposes of having Mr. Hitrinov countersign the "ink original" Settlement Agreement, and that the Court retain said "ink original" to be made a part of the Court file pertaining to this matter, with the parties to be provided with copies of same.

We again apologize for further burdening the Court with this final "housekeeping" detail, and particularly for the distasteful references to Mr. Werner's conduct and behavior in this matter, which regrettably required mention herein.

As always, we thank the Court for its continuing patience, courtesy and consideration.

Respectfully submitted,



Marcus A. Nussbaum (MN 9581)

cc: Seth M. Katz, Esq. (Pro hac vice Of-Counsel)

Via ECF Electronic Filing and Electronic Mail

Lyons & Flood

Attn: Jon Werner, Esq.

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